

expressly on Plaintiff paying the reasonable fees and costs Defendant incurred in preparing and filing the motion for judgment on the pleadings.

The matter of attorneys fees and costs is continued to August 13, 2026 at 8:30. Defendant's counsel to file a declaration describing the fees and costs incurred by July 27, 2026. Any opposition to the fees and costs (which will be reviewed critically) shall be filed by August 3, 2026. If the parties meet and confer and resolve the fees and costs, Plaintiff will prepare a stipulation and order vacating the follow up hearing. Plaintiff shall have 30 days to pay those fees and costs, or this order withdrawing the deemed admissions will be vacated, and Defendant's motion for judgment on the pleadings reset for hearing on an expedited basis.

With this ruling, the court takes Defendant's motion for judgment on the pleadings off calendar, as moot at present.

ERIONA BOLER VS. DR. JEFFREY A. SALADIN COMPANY, INC.
Case No. CU24-09674

Plaintiff's Motion for Approval of PAGA Settlement

Tentative Ruling:

Parties to appear.

TARA CRUZ v. CARVANA, LLC et al.
Case No. CU25-05498

Plaintiff's Motion to Lift Stay

TENTATIVE RULING

Plaintiff TARA CRUZ moves to lift the stay ordered in this case on January 21, 2026 in conjunction with this court's order that her claims against Defendants CARVANA, LLC, BRIDGECREST ACCEPTANCE CORPORATION, and DEVELOPERS SURETY & INDEMNITY COMPANY (together "Respondents") be sent to arbitration pursuant to an arbitration agreement between the parties. Plaintiff contends that Respondents failed to timely pay arbitration initiation fees.

Forfeiture of Arbitration for Nonpayment of Fees. Code of Civil Procedure section 1281.97 states that in situations where the party that drafted an arbitration agreement is required to pay fees to initiate arbitration that party forfeits its right to arbitration if said initiation fees are not paid within thirty days of their due date. Likewise, Code of Civil Procedure section 1281.98 states that a drafting party required to pay fees that arise during the pendency of an arbitration forfeits its right to continued arbitration if said continuation fees are not paid within thirty days of their due date. The parties here do not contest that Respondents were required to pay initiation fees under the arbitration agreement with Plaintiff and failed to timely pay the fees for the arbitration Plaintiff

initiated. *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310 (*Hohenshelt*) holds that a drafting party does not necessarily forfeit its right to arbitration when it does not timely pay initiation or continuation fees. Sections 1281.97 and 1281.98 are not to be rigidly construed but rather only apply to invalidate the right to arbitration where the failure to pay fees is willful, grossly negligent, or fraudulent. (*Id.* at p. 323.) Nonpayment due to good faith mistake, inadvertence, or excusable neglect is not the sort of strategic nonpayment the statutes are meant to combat. (*Ibid.*)

Hohenshelt excuses Respondents here. Arbitrator AAA sent Respondents' counsel an invoice for arbitration initiation fees on March 3, 2026 stating a payment due date of April 2, 2026. (Declaration of Tara Cruz in Support of Motion Lift Stay at ¶ 8, Exhibit C.) Respondents' counsel did not notice the invoice because it went to their junk mail folder. (Declaration of Hannah Makinde in Support of Opposition to Motion to Lift Stay at ¶ 4.) Respondent discovered the arbitration file was closed when it received AAA's notice of case closure, which for some reason did not go to the junk mail folder. (*Ibid.*) Respondent immediately offered to pay the fee, though AAA refused to accept it because Plaintiff did not consent to reopening the arbitration. (*Id.* at ¶¶ 5-7, Exhibit C.)

Respondents' error was excusable neglect. Further, section 1281.97, subdivision (a)(1) states that a drafting party is only in material breach of an arbitration agreement where it fails to pay initiation fees within thirty days of the fee due date. AAA gave Respondents a due date of April 2, 2026. Respondents' offer to pay the fees on April 13, 2026 would, if accepted, have resulted in payment of the fees within thirty days of the due date. There was no material breach in the meaning of section 1281.97 here.

Conclusion. Plaintiff's motion to lift the stay is denied. Plaintiff is to contact AAA to reinitiate arbitration.

MARTINEZ, ET AL. v. COUNTY OF SOLANO, ET AL.
Case No. CU25-05652

Demurrer to FAC

TENTATIVE RULING

Defendant County of Solano's demurrer to Plaintiffs' first amended complaint is overruled in part and sustained without leave to amend in part.

The demurrer to Plaintiffs' first cause of action for negligence per se, second cause of action for "negligent failure to warn", and fourth cause of action for loss of consortium is overruled.

There is no common law tort liability for public entities. (*Torres v. Dep't of Corr. & Rehab.* (2013) 217 Cal.App.4th 844, 850.) Unless otherwise provided by statute, "[a] public entity is not liable for any injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code § 815(a).) Therefore, all government tort liability must be based on statute. (*Hoff v.*